

STATE OF NEW YORK

4877--D

2025-2026 Regular Sessions

IN ASSEMBLY

February 7, 2025

Introduced by M. of A. SHRESTHA, ROSENTHAL, SHIMSKY, KELLES, ROMERO, REYES, GALLAGHER, LEVENBERG, BURROUGHS, FORREST, STECK, VALDEZ, MEEKS, CUNNINGHAM, TAPIA, DAVILA, BURDICK, DE LOS SANTOS, CLARK, BRONSON, JACOBSON, GONZALEZ-ROJAS, MITAYNES, SIMON, R. CARROLL, SIMONE, LEE, SCHIAVONI, OTIS, SEAWRIGHT, RAGA, TAYLOR, LASHER, ANDERSON, BORES, MORENO, SEPTIMO, WRIGHT, DINOWITZ, WALKER, STIRPE, TORRES, LUPARDO, DILAN, HEVESI, BICHOTTE HERMELYN, GIBBS, KIM, P. CARROLL, HOOKS, GLICK, RAMOS, POWERS, ALVAREZ, CHANDLER-WATERMAN, JACKSON, LUCAS, O'PHARROW -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- reported and referred to the Committee on Rules -- Rules Committee discharged, bill amended, ordered reprinted as amended and recommitted to the Committee on Rules

AN ACT to amend the emergency tenant protection act of nineteen seventy-four, in relation to enacting the rent emergency stabilization for tenants act on local determinations of a housing emergency

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Short title. This act shall be known and may be cited as
- 2 the "rent emergency stabilization for tenants act".
- 3 § 2. Section 3 of section 4 of chapter 576 of the laws of 1974,
- 4 constituting the emergency tenant protection act of nineteen seventy-
- 5 four, subdivision a as amended by chapter 69 of the laws of 1980, subdi-
- 6 visions d, f and g as added by chapter 698 of the laws of 2023 and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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subdivision e as amended by chapter 100 of the laws of 2024, is amended to read as follows:

§ 3. Local determination of emergency; end of emergency. a. The existence of public emergency requiring the regulation of residential rents for all or any class or classes of housing accommodations, including any plot or parcel of land which had been rented prior to May first, nineteen hundred fifty, for the purpose of permitting the tenant thereof to construct or place ~~his~~ such tenant's own dwelling thereon and on which plot or parcel of land there exists a dwelling owned and occupied by a tenant of such plot or parcel, heretofore destabilized; heretofore or hereafter decontrolled, exempt, not subject to control, or exempted from regulation and control under the provisions of the emergency housing rent control law, the local emergency housing rent control act or the New York city rent stabilization law of nineteen hundred sixty-nine; or subject to stabilization or control under such rent stabilization law, shall be a matter for local determination within each city, town or village. Any such determination shall be made by the local legislative body of such city, town or village on the basis of the supply of housing accommodations within such city, town or village, the condition of such accommodations and the need for regulating and controlling residential rents within such city, town or village.

[A] b. For a city having a population of one million or more residents, a declaration of emergency may be made as to any class of housing accommodations if the vacancy rate for the housing accommodations in such class within such municipality is not in excess of five percent and a declaration of emergency may be made as to all housing accommodations if the vacancy rate for the housing accommodations within such municipality is not in excess of five percent.

~~[b-]~~ c. For a city having a population of less than one million residents or a town or village, the local legislative body may declare a housing emergency through the process described in paragraph one or two of this subdivision. For such a jurisdiction where a local legislative body has declared a housing emergency pursuant to this act prior to the effective date of this subdivision, the local legislative body may add classes of accommodation as described in paragraph five-b of subdivision a of section five of section four of this act, through the process described in paragraph one or two of this subdivision.

(1) The local legislative body may declare a housing emergency after considering publicly available data and holding no less than one public hearing. Before declaring such emergency, the local legislative body shall consider publicly available data measuring or estimating factors including but not limited to: overall housing supply, vacancy rate for housing accommodations, the availability of affordable and habitable housing accommodations, rent burdens for tenants or other measures of housing affordability, and the local or regional homelessness rate.

(2) The local legislative body may declare an emergency as to any class of housing accommodations if the vacancy rate for such housing accommodations in such class within such municipality is not in excess of five percent and a declaration of emergency may be made as to all housing accommodations if the vacancy rate for the housing accommodations within such municipality is not in excess of five percent.

(i) When requested by a municipality or a designee, as part of a study to determine its vacancy rate, owners, or their agent, of housing accommodations in the class of housing accommodations determined, shall provide the most recent records of rent rolls and, if available, records for the preceding thirty-six months. Such records shall include the

tenant's relevant information relating to finding the vacancy rate of such municipality including but not limited to the name, address, and amount paid or charged on a weekly, monthly, or annual basis for each occupied housing accommodation and which housing accommodations are vacant at the time of the survey and available for rent. Such records shall also include any housing accommodations that are vacant and not available for rent and provide the reason why such unit is not available for rent.

(ii) A municipality may impose a civil penalty or fee of up to five hundred dollars on an owner or their agent if such owner or their agent refuses to participate in such vacancy survey and cooperate with such municipality or a designee in such vacancy survey, or submits knowingly and intentionally false vacancy information.

(iii) A nonrespondent owner shall be deemed to have zero vacancies.

(iv) Identifying data or information shall be kept confidential and shall not be shared, traded, given, or sold to any other entity for any purpose outside of such vacancy study.

d. A city of under one million residents or a town or village may add classes of accommodation to regulation under this act in buildings containing fewer than six but not fewer than four units.

e. The local governing body of a city, town or village having declared an emergency pursuant to subdivision a, b, or c of this section may at any time, on the basis of the supply of housing accommodations within such city, town or village, the condition of such accommodations and the need for continued regulation and control of residential rents within such municipality, declare that the emergency is either wholly or partially abated or that the regulation of rents pursuant to this act does not serve to abate such emergency and thereby remove one or more classes of accommodations from regulation under this act. ~~[The emergency must be declared at an end once the vacancy rate described in subdivision a of this section exceeds five percent.~~

~~e.]~~ f. No resolution declaring the existence or end of an emergency, as authorized by ~~[subdivisions]~~ subdivision a ~~[and]~~, b, c or e of this section, may be adopted except after public hearing held on not less than ten days public notice, as the local legislative body may reasonably provide.

~~[d. When requested by a municipality or a designee, as a part of a study to determine its vacancy rate, owners, or their agent, of housing accommodations in the class of housing accommodations determined, shall provide the most recent records of rent rolls and, if available, records for the preceding thirty six months. Such records shall include the tenant's relevant information relating to finding the vacancy rate of such municipality including but not limited to the name, address, and amount paid or charged on a weekly, monthly, or annual basis for each occupied housing accommodation and which housing accommodations are vacant at the time of the survey and available for rent. Such records shall also include any housing accommodations that are vacant and not available for rent and provide the reason why such unit is not available for rent.~~

~~e. A municipality may impose a civil penalty or fee of up to five hundred dollars on an owner or their agent if the owner or their agent refuses to participate in such vacancy survey and cooperate with the municipality or a designee in such vacancy survey, or submits knowingly and intentionally false vacancy information.~~

~~f. A nonrespondent owner shall be deemed to have zero vacancies.~~

~~g. Identifying data or information shall be kept confidential and shall not be shared, traded, given, or sold to any other entity for any purpose outside of such vacancy study.]~~

§ 3. Subdivision a of section 5 of section 4 of chapter 576 of the laws of 1974, constituting the emergency tenant protection act of nineteen seventy-four, is amended by adding a new paragraph 5-b to read as follows:

(5-b) housing accommodations located in a city having a population of less than one million residents or a town or village in buildings completed or buildings substantially rehabilitated as family units within the past fifteen years.

§ 4. This act shall take effect immediately.